

Here, Plaintiff's causes of action are factually predicated on his diagnosis of Hemophilia A and his severe chronic joint damage and mobility impairment. Defendants are attempting to subpoena medical records from Plaintiff's medical provider. Plaintiff has a right of privacy in his medical records. However, by filing the present suit he has waived any right in these records that are directly relevant to whether Plaintiff's prior existing medical conditions contributed to or caused the subject injuries. The Court has reviewed the scope of the subpoena and finds that it seeks records directly relevant to Plaintiff's claims. The Court also finds that there is not a less intrusive means to obtain this information. The request to quash or modify the subpoena is denied.

Sanctions. Defendants have requested sanctions against Plaintiffs based on alleged misuses of the discovery process for failing to meet and confer in good faith and making or opposing motions without substantial justification. CCP § 2023.010(h) & (i). While Defendant has ultimately prevailed in opposing the motion, Plaintiffs have shown that the parties met and conferred on the issues and that there was substantial justification to bring the motion. The request for sanctions is denied.

The motion is **DENIED**. The request for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's ruling.

WEBB VS. SIMPSON, ET AL.

CASE NUMBER: 25CV-0207020

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on May 15, 2026 to Plaintiff Amanda Kristeen Webb for her failure to appear at the prior hearing on May 11, 2026. No response has been filed. Without any explanation for her failure to appear, the Court will impose sanctions in the amount of \$250 against Plaintiff. The clerk is instructed to prepare a separate order of sanctions. The Court will issue an Order to Show Cause Re: Dismissal to Plaintiff pursuant to Gov't Code §68608(b) for her failure to appear at the prior hearing on May 11, 2026 and to appear at today's hearing on June 22, 2026. The Order to Show Cause Re: Dismissal is set for **Monday, September 21, 2026, at 8:30 a.m. in Department 63.** Today's review hearings set for 9:00 a.m. is continued to **Monday, September 21, 2026, at 9:00 a.m. in Department 63** for trial re-setting.

WEBB VS. BIRD MICRO-ELECTRIC MOBILITY, ET AL.

CASE NUMBER: 25CV-0208413

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on May 6, 2026 to Plaintiff Michelle Webb and her counsel for their failure to timely serve all Defendant as required by CRC 3.110(b) and for their failure to timely enter default of Defendant Bird Rides, Inc. No response to the OSC was filed; however, Plaintiff's counsel did file a declaration on May 8, 2026, requesting a continuance of the trial dates. It appears the declaration was prepared and submitted before Plaintiff received the present OSC. Based on the information provided in the May 8 declaration, the Court will DISCHARGE the OSC. The Court sets this matter for **Monday, August 24, 2026, at 9:00 a.m. in Department 63** for review regarding status of service. **No appearance is necessary on today's calendar.**

WELLS FARGO BANK, N.A. VS. GILLIS

CASE NUMBER: 23CVG-00548

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Pursuant to Stipulation: Plaintiff Wells Fargo Bank, N.A. seeks to vacate the dismissal entered on November 27, 2023 and enforce the Stipulation for Entry of Judgment attached as Exhibit 1 to the Declaration of Edgar B. Lopez. Despite being properly noticed, Defendant Lauren Taylor Gillis did not file an Opposition.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The Stipulation attached as Exhibit 1 was executed by both parties. The terms of the agreement are straightforward. The parties stipulated to a judgment of \$7,127.69 which is the principal amount. No costs were part of the agreement. The agreement calls for a payment of \$527.69 on or before March 28, 2025 followed by minimum monthly payments of \$300.00 on or before the 28th of every month starting on April 28, 2025 until the balance is fully paid by January 28, 2027. The parties also agreed that following the dismissal, Plaintiff may reopen the case to enter judgment in the event of Defendant's failure to comply with the terms of payment described in the agreement.

The declaration of attorney Edgar B. Lopez establishes that Defendant has made no payments and the principal sum still owing is \$7,127.69. Plaintiff has sufficiently shown that Defendant breached the terms of the agreement by failing to make payments as owed. Plaintiff requests that the judgment include \$300.00 in costs, however, this was not included in the Stipulation. Plaintiff may file a Memorandum of Costs.

The Motion is **GRANTED**. The dismissal is set aside and Judgment for the Plaintiff will be entered in the amount of \$7,127.69. Plaintiff provided a proposed Order and proposed Judgment, both of which will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

BAILEY VS. OLSEN

CASE NUMBER: 24CV-0204127

This matter is on calendar for review regarding status of minor's compromise. An Order Approving Compromise was filed on June 15, 2026. The matter is continued to **Monday, August 10, 2026 at 9:00 a.m. in Department 63** for confirmation of deposit and status of dismissal. **No appearance is necessary on today's calendar.**

BAKER VS. TERRILL

CASE NUMBER: 25CV-0207907

This matter is on calendar for review regarding status of counsel. The Court previously granted a motion relieving Plaintiff's Counsel, Brian Pratt. A Notice of Entry of Order has been filed showing service of the order on Plaintiff Justin Baker. Mr. Pratt has been relieved effective upon service of the Notice of Entry of Order and Plaintiff is now self-represented. **An appearance is necessary on today's calendar to provide the Court with a status of the litigation and, if appropriate, to set this matter for trial.**

CAL TREES LLC VS. MAXIMUS TREE WORKS, LLC, ET AL.

CASE NUMBER: 24CV-0205268

This matter is on calendar for review regarding status of the case. The Court notes that Defendant Michael Wasgatt was dismissed. The Court called the Order to Show Cause Re: Striking Answer and Cross-Complaint on this morning's Law & Motion calendar. **An appearance by Plaintiff is necessary on today's calendar to discuss whether Plaintiff intends to move forward with a default as to the remaining Defendants.**

CRUZ VS. WINCO FOODS, LLC

CASE NUMBER: 24CV-0204817

This matter is on calendar for review regarding status of pleadings and trial setting. Cross-Defendant Diamond Janitorial Company, LLC was named in both Cross-Complaints but has not appeared. Counsel for Defendant Winco Foods has submitted a declaration stating that Diamond Janitorial has a suspended business license, cannot accept service nor file a responsive pleading. **An appearance is necessary on today's calendar to discuss how the parties intend to proceed.**